City of Langford

Council Minutes

September 25, 2023, 7:00 p.m.
Council Chambers & Electronic Meeting

PRESENT:	Mayor S. Goodmanson Councillor K. Guiry Councillor C. Harder - Remote Councillor M. Morley	Councillor L. Szpak - Remote Councillor M. Wagner - Remote Councillor K. Yacucha
ATTENDING:	D. Kiedyk, Chief Administrative Officer B. Hutchins, Director of Corporate Services M. Watmough, Deputy Director of Corporate Services M. Baldwin, Director of Planning and Subdivision M. Dillabaugh, Director of Finance K. Balzer, Director of Engineering and Public Works Y. Nielsen, Director of Parks, Recreation and Facilities	K. Dube, Senior Manager of Information Technology and GIS D. Petrie, Senior Manager of Business Development and Events L. Fletcher, Manager of Community Safety and Municipal Enforcement - Remote W. Robinson, Manager of Building Services T. Booth, GIS Lead B. Boisvert, Legislative Services Administrative Coordinator S. Harvey, Records Assistant

Meeting available by teleconference.

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1. CALL TO ORDER

Mayor Goodmanson called the meeting to order at 7:01 pm.

2. TERRITORIAL ACKNOWLEDGEMENT

Mayor Goodmanson, read the City of Langford's Territorial Acknowledgment.

3. MEETING CONDUCT RULES

M. Watmough, Deputy Director of Corporate Services, read the City of Langford's meeting conduct rules.

4. APPROVAL OF THE AGENDA

MOVED BY: YACUCHA
SECONDED: GUIRY

THAT Council approve the agenda as presented.

Motion CARRIED.

5. PUBLIC HEARINGS

5.1 BYLAW NO. 2132

"Langford Zoning Bylaw, Amendment No. 699, (RS1 Text Amendment – 2120 Millstream Road), Bylaw No. 2132, 2023".

The Mayor opened the Public Hearing for Bylaw No. 2132 at 7:05 pm.
Director of Planning Matthew Baldwin advised that Manny Janda has applied on behalf of 1366771 BC Ltd, 1366789 BC Ltd, and 1366778 BC Ltd to amend the text of the Residential Small Lot 1 zone to increase the allowable townhouse units from 47 units to 62 units, and to allow for an FAR of 0.56 within the Residential Townhouse 1 Zone at 2120 Millstream Road.
In support of this application, the applicant has agreed to provide the following:
That the applicant, prior to Bylaw Adoption, registers a Section 219 covenant in priority of all other charges on title that agrees to the following:
1. That a separate covenant be registered prior to the issuance of a building permit agreeing that the garages and carports are to be used for the parking of vehicles and not the storage of items preventing the parking of vehicles therein; and
2. That, prior to the issuance of a Building Permit, the developer enters into a Housing Agreement with the City of Langford that requires a minimum of 5 townhouse units be either rented out at 10% below market rent, or, be sold to a non-profit housing provider. The developer shall identify each unit on their plans submitted for their required Development Permit application.
3. That electric heat pumps are installed in the townhouse units.
Council has also, by resolution, authorized the Director of Planning to grant a parking variance within the Development Permit to allow the 5 Attainable Housing units to have one parking space per unit.
This proposal is consistent with the Official Community Plan Neighbourhood designation.
Notifications and advertisements have been placed as required by the *Local Government Act.*

Mayor Goodmanson called a first time for presentations.

Rachael Sansom presented an information package regarding the proposed development.

K. Stewart, Stone Gate - The speaker is an adjacent neighbour with inquires to the developer. A concern regarding a construction fence and will there be a new fence. The speaker is concerned about the blasting in the area. Their concern for any property damage regarding the blasting. The speaker is concerned about the final date of completion and the effect on their quality of life, due to a prolonged construction period of 3 years.

D. Moore, Bishops Gate - The speaker lives adjacent to the development. The speaker is concerned about the blasting procedures being followed. The speaker is concerned

about the length of construction. The speaker is concerned about the expansion of the development. The speaker is concerned about the increase to street parking in the area.

Mayor Goodmanson called a second time for presentations.

S. Sahota, Rockhampton Cl - The speaker is concerned about the blasting and noise. However, the speaker is encouraged about the increase of affordable housing. The speaker request the developer keeps within the bylaws of the City of Langford.

Mayor Goodmanson called a third time for presenters.

Councillor Morley inquired about the cost of the townhouses in the development.

Rachael Sansom responded the cost will be 10% below market value.

Councillor Wagner inquired about the process of blasting times. Can the intensity of blasting be controlled.

Katelyn Balzer, Director of Engineering and Public Works responded that blasting allotment time in a development area is 18 months. Pre blast surveys can be done with the blasting company. The blasting is regulated under Occupational Health and Safety and Work BC.

Rachael Sansom responded about the blasting process. That the blasting regulations are under the control of the blasting company. The blasting time on the development is 75% complete.

Councillor Wagner inquired about enforcing the parking covenant on the property.

Matthew Baldwin, Director of Planning and Subdivision responded that enforcement of the parking covenant would be the responsibility of the City of Langford and the Bylaw Enforcement department.

Councillor Wagner inquired about the fencing.

Rachael Sansom responded that a temporary construction fence will be used during construction and then a permanent fence will be put in place.

Mayor Goodmanson declared the Public Hearing for Bylaw No. 2132 closed at 7:28 pm.

5.2 BYLAW NO. 2142

"Langford Zoning Bylaw, Amendment No. 704, (820, 822, 824 and 826 Hockley Avenue, Bylaw 2142, 2023".

The Mayor opened the Public Hearing for Bylaw No. 2142 at 7:28 pm.
Director of Planning Matthew Baldwin advised that Rachael Sansom and Neil Banich have applied on behalf of Pioneer Luxury Homes Ltd, Mova Properties Corp, and The Hockley Development Ltd. to amend the zoning of 820, 822, 824, and 826 Hockley Avenue from the R2 (One- and Two-Family Residential) Zone to the CC1 (City Centre) Zone.
This is being proposed in order to allow for the development of a six storey apartment with approximately 75 units.
In support of this application, the applicant has agreed to provide the following:

a. That the applicant provides, as a bonus for increased density, the following contributions per dwelling unit:
i. $750 towards the Affordable Housing Reserve Fund; and
ii. $2,850 towards the General Amenity Reserve Fund;
Subject to reductions in accordance with the Affordable Housing and Amenity Contribution Policy and the Attainable Housing Policy depending on use and height.
b. That the applicant provides, prior to Bylaw Adoption, a Section 219 covenant, registered in priority of all other charges on title, that agrees to the following:
i. That the following will be provided and implemented to Bylaw 1000 standards to the satisfaction of the Director of Engineering:
1. Full frontage improvements, inclusive of red brick sidewalk and street parking.
2. A storm water management plan; and
3. A construction parking and delivery management plan.
ii. That the developer will connect and be responsible for any upgrades required to the services and utilities required for the development;
iii. That the properties be consolidated prior to issuance of a Development Permit for Form and Character;
iv. That no occupancy permit shall be issued until the roundabout at Peatt Road and Hockley Avenue has been completed and is operational, to the satisfaction of the Director of Engineering;
v. That a separate covenant be registered prior to issuance of a building permit for the proposed residential building that ensures parking is allocated to each unit and for visitors as required by the zoning bylaw, and is not provided in exchange for compensation separate from that of a residential unit;
vi. That all concrete used on-site will utilize ready-mix concrete that meets or exceeds the weighted average Global Warming Potential targets based on Concrete BC Baseline (average) mix data, and that prior to the issuance of a Building Permit the applicant shall provide a Type III Environmental Product Declaration that is 3rd party verified specifying the total Global Warming Potential value and confirming that the proposed development meets the requirements of Low Carbon Concrete Policy POL-0167-PLAN;
vii. That, prior to the issuance of a Building Permit, the developer enters into a Housing Agreement with the City that requires either a minimum 10% of units constructed be rented for at least 10% below the benchmark rent for the unit type for a term not less than 25 years or that a minimum of 5% of the units constructed be directed to and sold in accordance with the terms of the Attainable Home Ownership Program Policy (POL-0166-PLAN).
viii. That all tree protection and monitoring measures outlined in the arborist report prepared by Talmack Urban Forestry Consultants Ltd, dated June 29th, 2023, shall be implemented throughout the course of construction. Tree protection fencing shall be installed prior to commencement of works, and confirmation shall be provided to the Planning Department.
Council has also, by resolution, authorized the Director of Planning and Subdivision to issue a parking variance within the Development Permit to reduce the required parking from 1.25 spaces per unit to 1.2 spaces per unit.
This proposal is consistent with the Official Community Plan City Centre designation.
Notifications and advertisements have been placed as required by the *Local Government Act.*

Mayor Goodmanson called a first time for presentations.

Rachael Sansom presented an information package regarding the development.

G. Haythornthwaite, Peatt Rd - The speaker inquired about the impact of this development to the social development of local residents and the advancement of habitat preservation. The speaker has concerns regarding any provisions Council will make regarding public space, service provision, habitat protection, traffic, and economically accessible housing. The speaker would like a park and a public space in the area. The speaker would like the woodlands in the area to be protected. The speaker would like the City to set an example by changing the accessible housing model.

C. Young, Goldstream Ave - The speaker is concerned about the potential for construction noise. The speaker would like trees protected in the area. The speaker inquired about a proposed start and end time of construction of the development.

Mayor Goodmanson called a second time for presentations.

S. Costello, Robalee Pl - The speaker inquired about the availability of handicap parking.

Mayor Goodmanson called a third time for presenters.

Rachael Sansom responded regarding the noise during construction, in that there are bylaws that will be followed. The start and end date is not determined yet. But historically similar developments take around 18 months. The accessibly issues are regulated by building codes and they will be met in the development.

Matthew Baldwin, Director of Planning and Subdivision responded to remind Council that they have a bylaw in draft regarding accessible parking.

Councillor Wagner inquired about the how many accessible parking stalls are required.

Matthew Baldwin, Director of Planning and Subdivision responded that he did not have the exact number readily available, but the City of Langford's accessible parking bylaws will be implemented.

Councillor Wagner inquired about implementing the good neighbour policy. Inquired about driveway alignment and traffic in the area. Inquired about construction trucks blocking a street lane.

Katelyn Balzer, Director of Engineering and Public Works responded the good neighbour policy is proposed to be adopted in the spring of 2024 and would apply to this development. With regards to the driveway alignment there is a process for ensuring free flow traffic. A loading zone is also being proposed. Regarding the blocked lane a highway use permit can be obtained to offload equipment.

Rachael Sansom responded that a loading zone is a part of the proposed development. Also, that parts of the good neighbour policy is already being implemented.

Councillor Harder inquired about a clarification on how to seek enforcement outside bylaw enforcement hours. Inquired about the open space in this area.

Braden Hutchins, Director of Corporate Services responded that a member of the public can call or email the bylaw enforcement office. Best practice is to document any

perceived offense. If after hours contact bylaw enforcement during business hours, if an incident becomes an urgent matter, call 911.

Katelyn Balzer, Director of Engineering and Public Works responded with an after-hours bylaw enforcement number 250-857-0400. Responded to the open space that is available now will be moved to the sidewalk in front the terminus building.

Councillor Szpak inquired about the timelines of the zoning process.

Matthew Baldwin, Director of Planning and Subdivision responded that when land is zoned the development permit issued expires after 2 years if no substantial work is completed. Building permits will expire after 18 months.

Mayor Goodmanson inquired about the definition of substantial work.

Matthew Baldwin, Director of Planning and Subdivision responded that the definition of substantial work is a foundation be in the ground.

Councillor Yacucha noted a plan for parks in the downtown core is a part of the strategic plan.

Councillor Guiry inquired about how new proposed amenity funding would help fund new parks in area.

Matthew Baldwin, Director of Planning and Subdivision responded that there are 3 methods of acquiring funds from developments. Density bonusing, a new proposed policy, development cost charge program and revenue that comes from taxation.

Councillor Wagner inquired how does the proposed new round about will get paid for.

Katelyn Balzer, Director of Engineering and Public Works responded that the developer would pay for the construction of the round about and will get Development Cost Charge credit.

Mayor Goodmanson declared the Public Hearing for Bylaw No. 2142 closed at 8:11 pm.

6. PUBLIC PARTICIPATION

W. Hobbs, Luxton Rd - re: item 7 - Expressed concern regarding the minutes of September 5, 2023, and that the essence of their concerns were not captured accurately.

C. Wright, Commander Crt - re: item 7 - Expressed concern that the minutes did not reflect their opinion of item 11.2 stated in the September 5, 2023, minutes.

L. Foxall, Players Dr - re: item 7 - Speaker would like the code of conduct amended to include family members of Council.

P. Hamilton, Granderson Ave - Expressed great concern regarding increased tension in the gallery at Council meetings.

The meeting went into recess at 8:24 pm., please see the resolution below.

The meeting resumed at 8:34 pm.

MOVED BY: YACUCHA
SECONDED: GUIRY

THAT Council at 8:24 pm. take a five-minute recess.

Motion CARRIED.

7. CONSENT AGENDA

Minutes of the Council Meeting - September 5, 2023 (ADOPTION)

Minutes of the Special Council Meeting - September 7, 2023 (ADOPTION)

THAT Council remove the Minutes of the Council Meeting - September 5, 2023 (ADOPTION), from the consent agenda.

MOVED BY: MORLEY
SECONDED: GUIRY

THAT Council adopt the recommendations for each item on the Consent Agenda as presented.

- THAT Council adopt the minutes of the Special Council meeting held on September 7, 2023.

Motion CARRIED.

8. CONSIDERATION OF MATTERS REMOVED FROM THE CONSENT AGENDA

Minutes of the Council Meeting - September 5, 2023 (ADOPTION)

MOVED BY: YACUCHA
SECONDED: WAGNER

THAT Council direct staff to review the minutes and bring back any amendments if necessary to the next Council meeting.

Motion CARRIED.

9. OTHER BOARD AND COMMISSION MINUTES

9.1 Minutes of the West Shore Parks and Recreation Society Board of Directors Meeting - June 15, 2023

MOVED BY: GUIRY
SECONDED: YACUCHA

THAT Council receive the minutes of the West Shore Parks and Recreation Society Board of Directors meeting held on June 15, 2023.

Motion CARRIED.

10. NOTICES OF INTENT

10.1 TUP20-0001 - 4373 West Shore Pkwy - Galaxy Motors RV Sales and Inventory Storage - Extension

MOVED BY: YACUCHA
SECONDED: MORLEY

That Temporary Use Permit No. TUP20-0001 be issued by the Council for the City of Langford to Ken Demontigny of Galaxy Motors (0698721 BC Ltd.) to allow a three-year extension of the temporary use permit to allow the land to be used for receiving, preparing and storage of recreational vehicles for sale at the applicant's neighbouring RV Dealership without building a structure that meets the 10% minimum lot coverage requirement of the BP2A Zone at 4377 West Shore Parkway, subject to the following terms and conditions:

1. Conditions
The following requirements are imposed pursuant to section 493 of the *Local Government Act:*

a) No razor wire fencing;
b) At least 10lb dry chemical fire extinguisher must be available on site at all times;
c) Address for the site to be posted as per City of Langford bylaw; and
d) Maintain an access lane on site for fire suppression for the duration.

Motion CARRIED.

11. CORRESPONDENCE

11.1 Scouts Canada Apple Day

MOVED BY: MORLEY
SECONDED: YACUCHA

THAT Council sanction the presence of Scouts Canada on the streets of Langford for the Apple Day fundraiser, on September 30 and October 1, 2023.

Motion CARRIED.

12. BYLAWS

12.1 BYLAW NO. 2132

"Langford Zoning Bylaw, Amendment No. 699, (RS1 Text Amendment – 2120 Millstream Road), Bylaw No. 2132, 2023". (SECOND AND THIRD READINGS)

MOVED BY: GUIRY
SECONDED: YACUCHA

THAT Council give Bylaw No. 2132 second and third readings.

Motion CARRIED.

12.2 BYLAW NO. 2142

"Langford Zoning Bylaw, Amendment No. 704, (820, 822, 824 and 826 Hockley Avenue, Bylaw No. 2142, 2023". (SECOND AND THIRD READINGS)

MOVED BY: GUIRY
SECONDED: YACUCHA

THAT Council give Bylaw No. 2142 second and third readings.

Motion CARRIED.

12.3 BYLAW NO. 2147 (Background report attached)

"Permissive Tax Exemption, 2023 (2024/27 year)". (FIRST, SECOND AND THIRD READINGS)

MOVED BY: YACUCHA
SECONDED: GUIRY

THAT Council give first, second, and third reading to City of Langford Permissive Tax Exemption Bylaw No. 2147, 2023.

Motion CARRIED.

12.4 BYLAW NO. 2148 (Background report attached)

"Grant Partnering Tax Exemption to Utility Property Owned by Sustainable Services LTD, 2023". (FIRST, SECOND AND THIRD READINGS)

MOVED BY: MORLEY
SECONDED: YACUCHA

THAT Council give first, second and third reading to Partnering Tax Exemption Bylaw No. 2148, 2023;

AND

THAT Council authorize the Mayor and Corporate Officer to execute an agreement with SSL in the form of Schedule A of Bylaw No. 2148.

Motion CARRIED.

13. IN CAMERA RESOLUTION

MOVED BY: YACUCHA
SECONDED: GUIRY

THAT Council close the meeting to the public pursuant to section 90 (1) (d) of the *Community Charter* to consider:

- the security of the property of the municipality.

Motion CARRIED.

The meeting went in camera at 8:49 pm.

14. ADJOURNMENT

MOVED BY: GUIRY
SECONDED: YACUCHA

THAT Council adjourn the meeting.

Mayor Goodmanson adjourned the meeting at 11:09 pm.

Motion CARRIED.

Presiding Council Member

SCOTT GOODMANSON
MAYOR

Certified Correct - Corporate Officer

Marie Watmough
Corporate Officer